

See all News

I witnessed Epstein’s post mortem. His death must be reinvestigated

In an interview with The Telegraph, Dr Michael Baden raises questions about paedophile’s suicide

 783

 Gift this article free

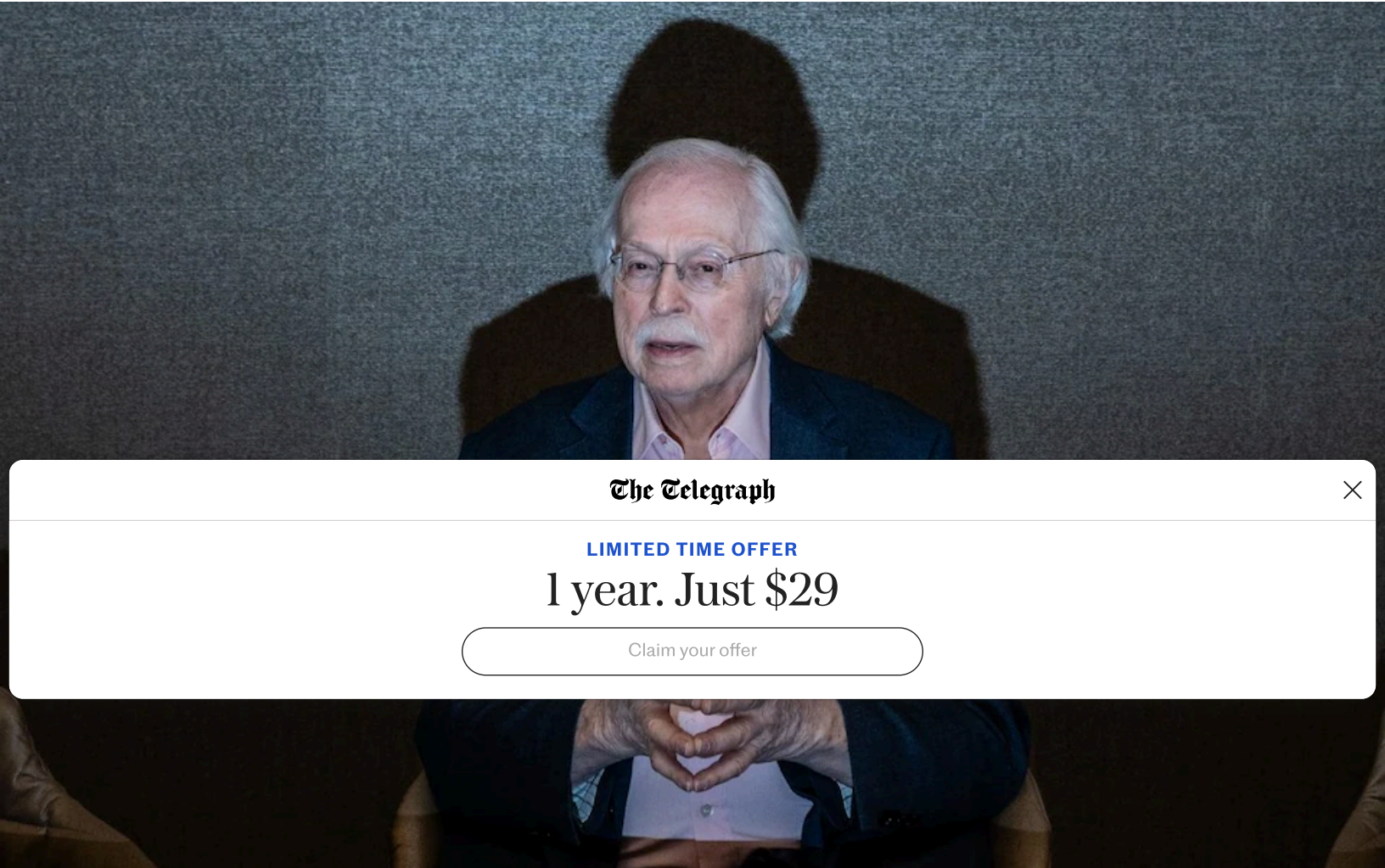
 Add us as preferred source





Iona Cleave

13 February 2026 6:30am GMT



The Telegraph

LIMITED TIME OFFER

1 year. Just \$29

Claim your offer

Dr Michael Baden, a pathologist, was present at the post mortem examination of Jeffrey Epstein Credit: Timothy Fadek



Iona Cleave

Iona Cleave is a Foreign Breaking News Reporter at The Telegraph. See more

13 February 2026 6:30am GMT

Jeffrey Epstein’s cause of death should be reinvestigated, a doctor present at the paedophile’s post mortem examination has said.

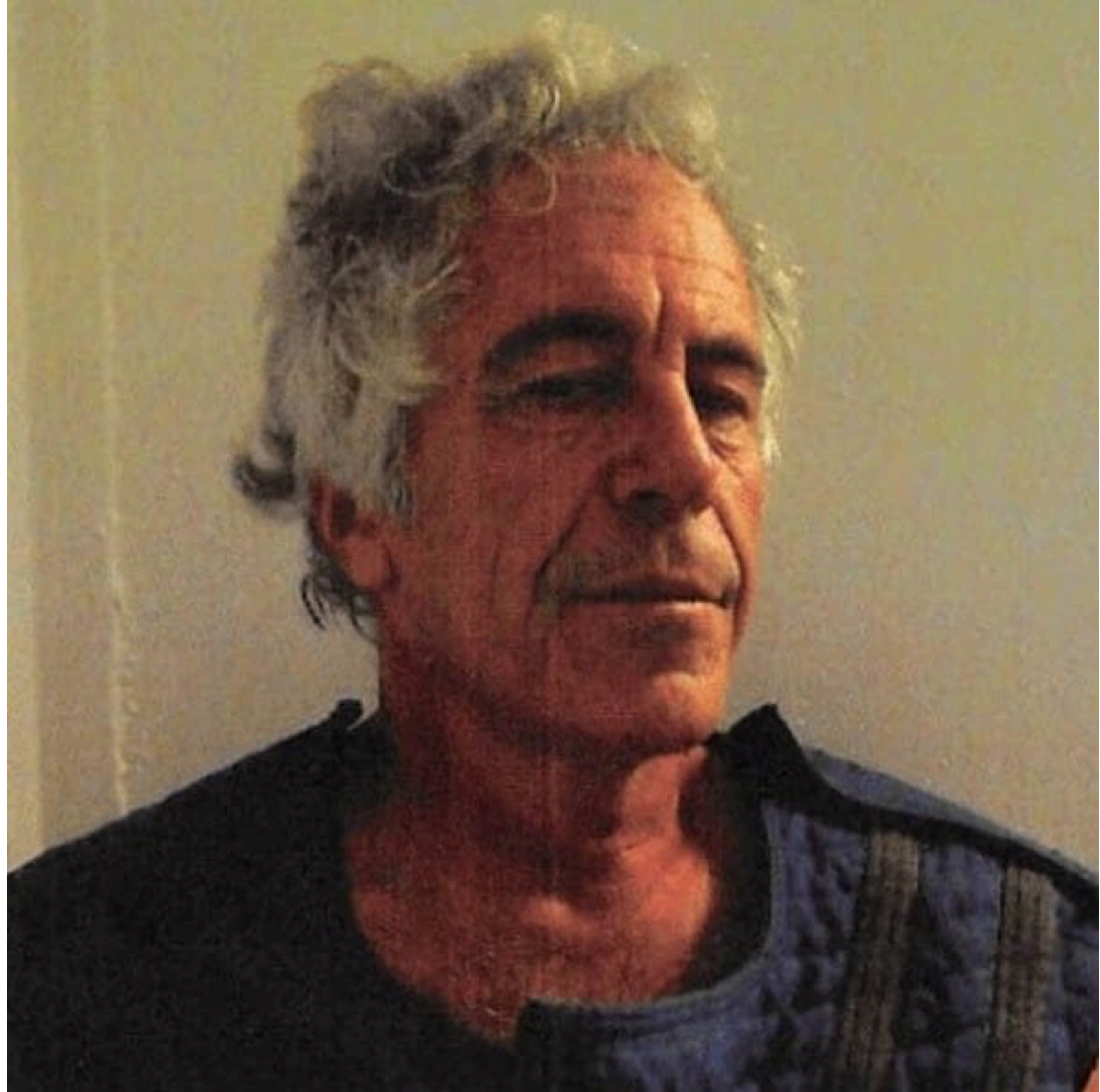
Dr Michael Baden is unconvinced by the finding of the New York Medical Examiner’s Office that the financier took his own life while awaiting trial on sex trafficking charges in 2019.

“My opinion is that his death was most likely caused by strangulation pressure rather than hanging,” the pathologist, who was hired by Epstein’s estate, told The Telegraph.

He said: “Given all the information now available, further investigation into the cause and manner of death is warranted.”

Dr Baden did not carry out the post mortem but was present during the examination, acting as an observer on behalf of Epstein’s family.

“At the time that the autopsy was done by the medical examiner, we both agreed that, on the basis of the autopsy report and the information available, more information was needed to determine the cause and manner of death,” Dr Baden said.



Jeffrey Epstein is pictured after an apparent suicide attempt in prison in January 2019 Credit: Department of justice

Since then, the release of tranches of government files relating to the paedophile have raised further questions about the nature of his death.

The release of CCTV footage from the night Epstein died led to rampant speculation over a mysterious “missing minute” of video in the recording, prompting theories someone entered the paedophile’s cell undetected.

In another clip from that night, an orange “flash” can be seen moving up the stairwell leading to his remote prison cell. Documents revealed authorities were in disagreement about the flash, saying it may have “possibly” been an inmate.

In light of new developments, Dr Baden maintains that further examination into the paedophile’s cause of death should be undertaken.

A redacted version of Epstein’s post mortem examination was released in December as part of the justice department’s first release of the so-called Epstein files.

In it, the child sex offender’s “manner of death” is marked as “pending”. Boxes for both suicide and homicide are left blank.



NYC
Office of Chief
Medical Examiner

FORENSIC TOXICOLOGY REQUEST FORM

FT19-03508-001

FT19-03508-001

Type: Bld
Source: Femoral

M.E. CASE #: M-19-019432			DATE OF DEATH: 08/10/2019 7:36 AM	
NAME OF DECEDENT: Epstein, Jeffery	Age 66 Years	Race White	M ☒ F	☒ AUTOPSY ☐ NO AUTOPSY (Exam) ☐ PURSUANT TO LAW  M19019432
MEDICAL EXAMINER: Dr. [REDACTED], [REDACTED]			ME EXAM DATE: 08/11/2019	
INDICATED: ☐ NO ☐ YES BASIC ☒ YES COMPREHENSIVE				

MANNER OF DEATH

☐ HOMICIDE ☐ SUICIDE ☐ ACCIDENT ☐ NATURAL ☐ THERAPEUTIC COMPLICATION ☐ UNDETERMINED ☒ PENDING

SAMPLES SUBMITTED:

001:10g 004:12g
002:10g 005:12g
003:10g 006:10g

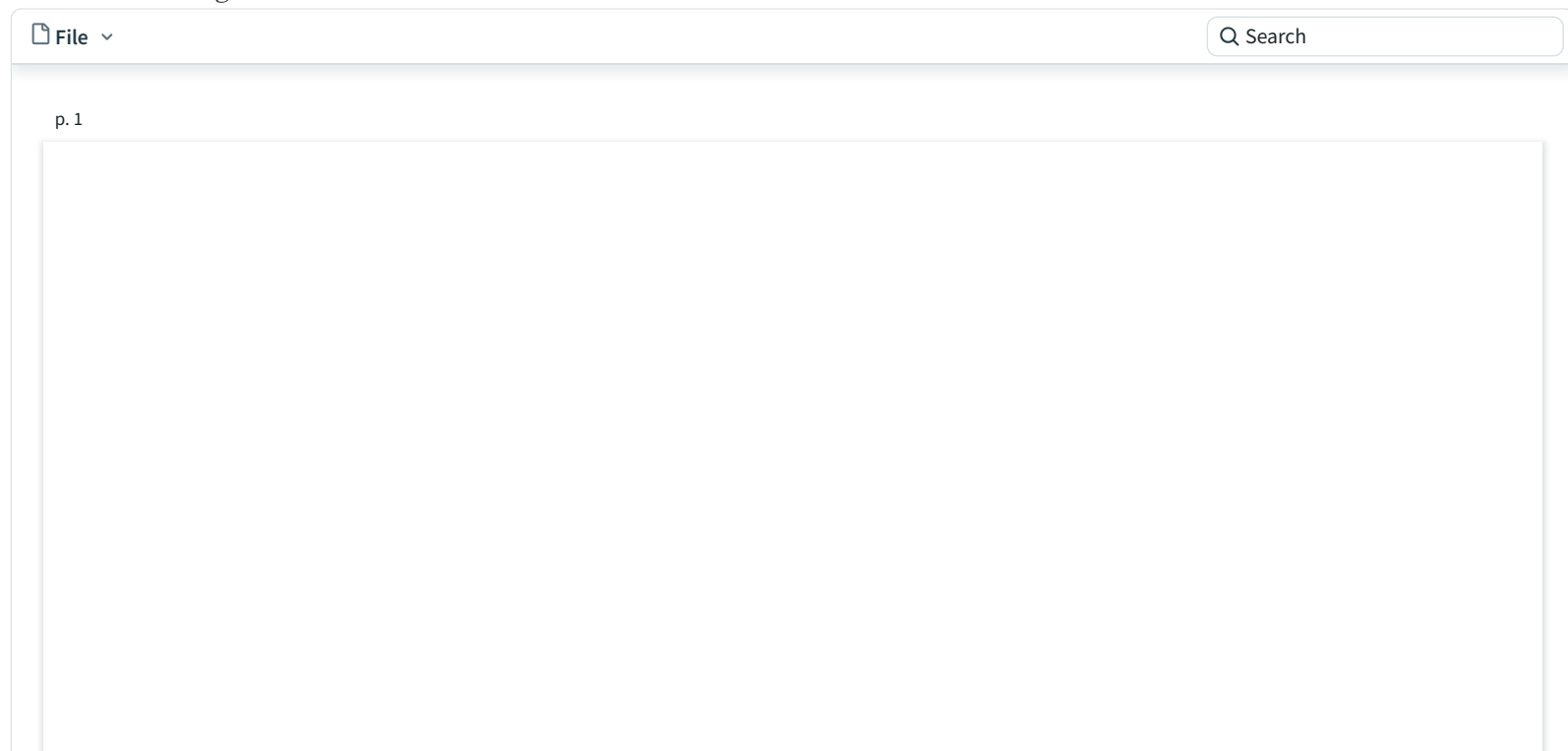
A page from Epstein’s post-mortem which records his manner of death as ‘pending’ Credit: Department of justice

Dr Baden makes clear that his professional findings following the post mortem on Aug 11 2019, were “inconclusive”.

However, he claims that five days after Epstein’s death certificate was published pending further investigation of the cause, this decision was “superseded” by Dr Barbara Sampson, New York’s then-chief medical examiner.

She ruled that Epstein’s death was by hanging and the manner was suicide. Dr Sampson was not present during the post mortem examination, according to Dr Baden.

She has publicly dismissed his claims that the evidence suggested strangulation, at the time saying she stands “firmly” behind her finding.



Epstein’s lawyers, meanwhile, argued that Dr Baden’s concerns were consistent with their own and that they were “not satisfied” with the medical examiner’s findings.

“I have not seen any evidence of further study, nothing that indicated further investigation into the cause of death,” Dr Baden said, adding that Dr Sampson’s verdict was just “accepted”.

“The diagnosis was made a number of days after the first cause of death given,” he said. In unusual or highly suspicious cases it can sometimes take weeks or months to determine the cause of death.

Dr Baden was one of the first people to raise concerns over the ruling. In August 2019, he told Fox News that “the evidence points toward homicide rather than suicide”.

Speaking to The Telegraph, Dr Baden said: “That was my opinion at that time, and I still stand by it. The autopsy findings are much more consistent with a crushing injury caused by homicidal strangulation than caused by hanging by suicide.”

The FBI and Donald Trump’s justice department have both stated that Epstein killed himself and that there is no evidence he was murdered.

The official post mortem report lists three distinct fractures on Epstein’s neck: one on the left hyoid and one in the thyroid cartilage on the right side, and one on the left.

INJURIES, EXTERNAL AND INTERNAL:

These injuries are described in reference to standard anatomic planes. These injuries are grouped and labeled for descriptive purposes only; no sequence is implied.

A. HANGING:

There is a depressed, focally dried and abraded, noncircumferential ligature furrow of the neck that peaks slightly on both sides of the neck, more steeply on the right side than on the left. On the right side of the neck, the furrow bifurcates anterior to the ear, with one arm that peaks behind the right ear and one arm that extends to the right side of the back of the neck. On the back of the right side of the neck at the end of the lower arm of the furrow is a 1/2" x 1", irregular, red abrasion. The furrow ranges from 13-3/4" to 15 long (measured from both ends of the furrow on the right), and ranges from 1/8" to 1/2" wide. Anteriorly, the furrow passes over the thyroid cartilage. On the upper edge of the right side of the furrow beneath the chin is an adjacent, 3/4 x 1". inverted V-shaped, linear abrasion that ranges in width from 1/8" to 1/4". Beneath the left side of the mandible is a faint, 1/2" x 1-3/4", irregular, red abrasion with multiple, interspersed, deeper, red abrasions that measure up to 1/4 x 3/8". The face and head are plethoric above the furrow, with petechial hemorrhages of the face that are most marked within the eyebrows. There are multiple, petechial hemorrhages of the palpebral conjunctivae of both eyes, and confluent hemorrhages on the periphery of the right bulbar conjunctiva. There are faint petechial hemorrhages on the mucosal surfaces of the upper and lower lips, Within the parenchyma of the tongue are multiple, focal, spotty, purple hemorrhages. There is diffuse, purple hemorrhage at the base of the tongue. There are no hemorrhages of the anterior strap muscles of the neck. Posteriorly, there is a single hemorrhage in the left, deep, paraspinal muscles. Both thyroid cartilage cornuae are fractured, and the left cornua of the hyoid bone is fractured, all with accompanying soft tissue hemorrhages. See also "Anthropology Report." There are no fractures of the cervical vertebrae.

A page from Jeffrey Epstein's autopsy detailing his injuries. Credit: Department of justice

Dr Baden claimed that he had never seen a hanging by suicide with three neck fractures throughout the 50 years he was employed to review post mortem reports for inmate deaths in all New York state and local jails.

“Even one fracture, we have to investigate the possibility of a homicide. Two definitely warrant a full investigation,” he said. “Findings in textbooks never see those fractures, and neither have I.”

Dr Sampson disagreed with this, saying that fractures of the hyoid bone and the cartilage were seen in both suicides and homicides.

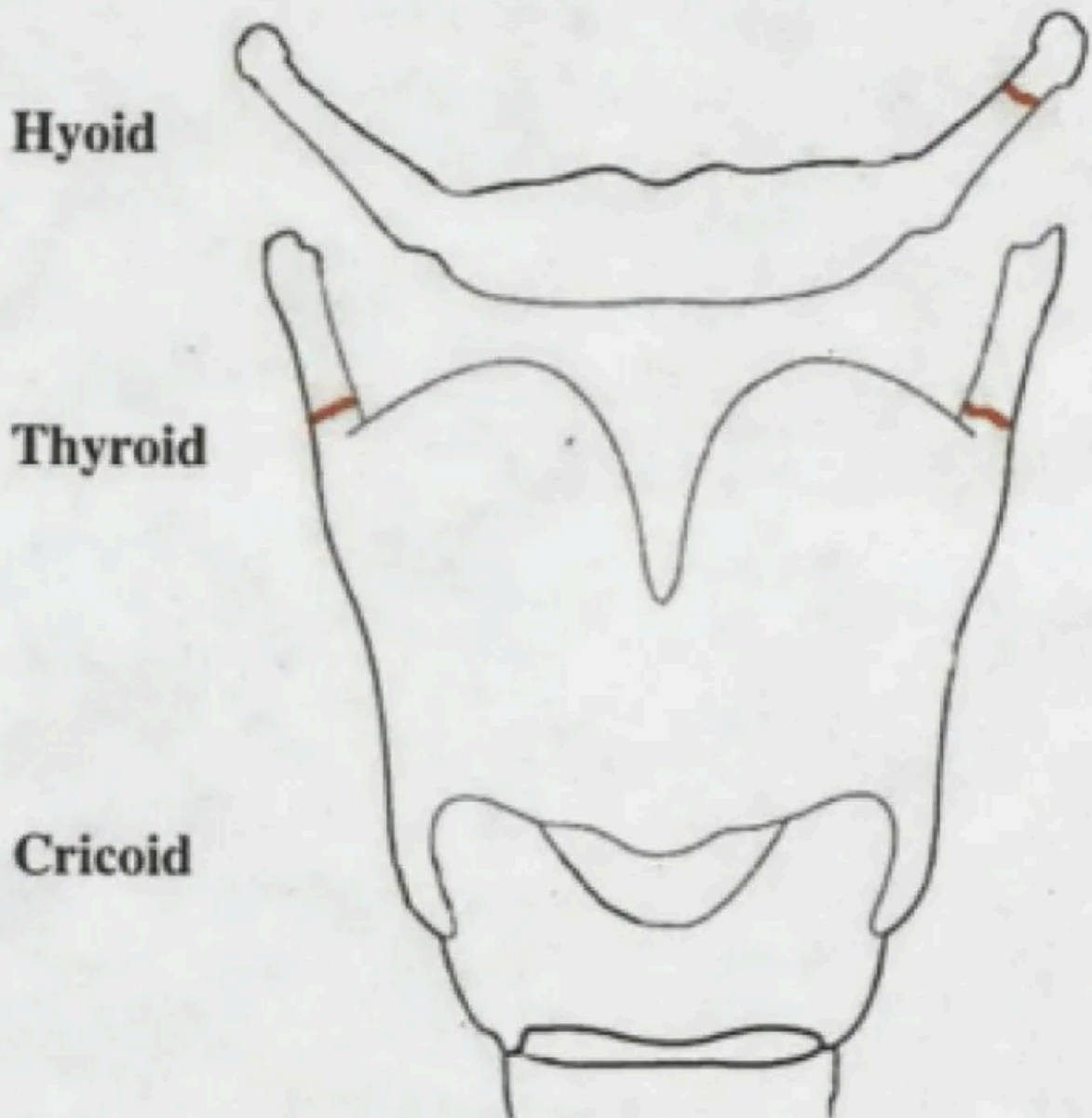


Figure 1. Diagram of the submitted hyoid and larynx (anterior view) showing the approximate fracture locations (red lines).

A page from Epstein's post-mortem reveals fractures (red lines) in three places Credit: Department of justice

Dr Baden, 91, has worked on a number of high-profile cases. In 1995, he gave evidence during [the trial of OJ Simpson](#), suggesting he was innocent.

The football star was accused of murdering his wife Nicole Brown Simpson and her friend Ronald Goldman.

Dr Baden later disavowed the claims he made. Simpson was acquitted at trial but was later found liable for the pair's deaths following a wrongful death suit. He was ordered to pay \$33.5m (£24.5m) to the victims' families.

Dr Baden also worked on investigations into the assassinations of both Martin Luther King and John F Kennedy. In 2020, he was hired by the family of George Floyd to perform a post mortem exam.

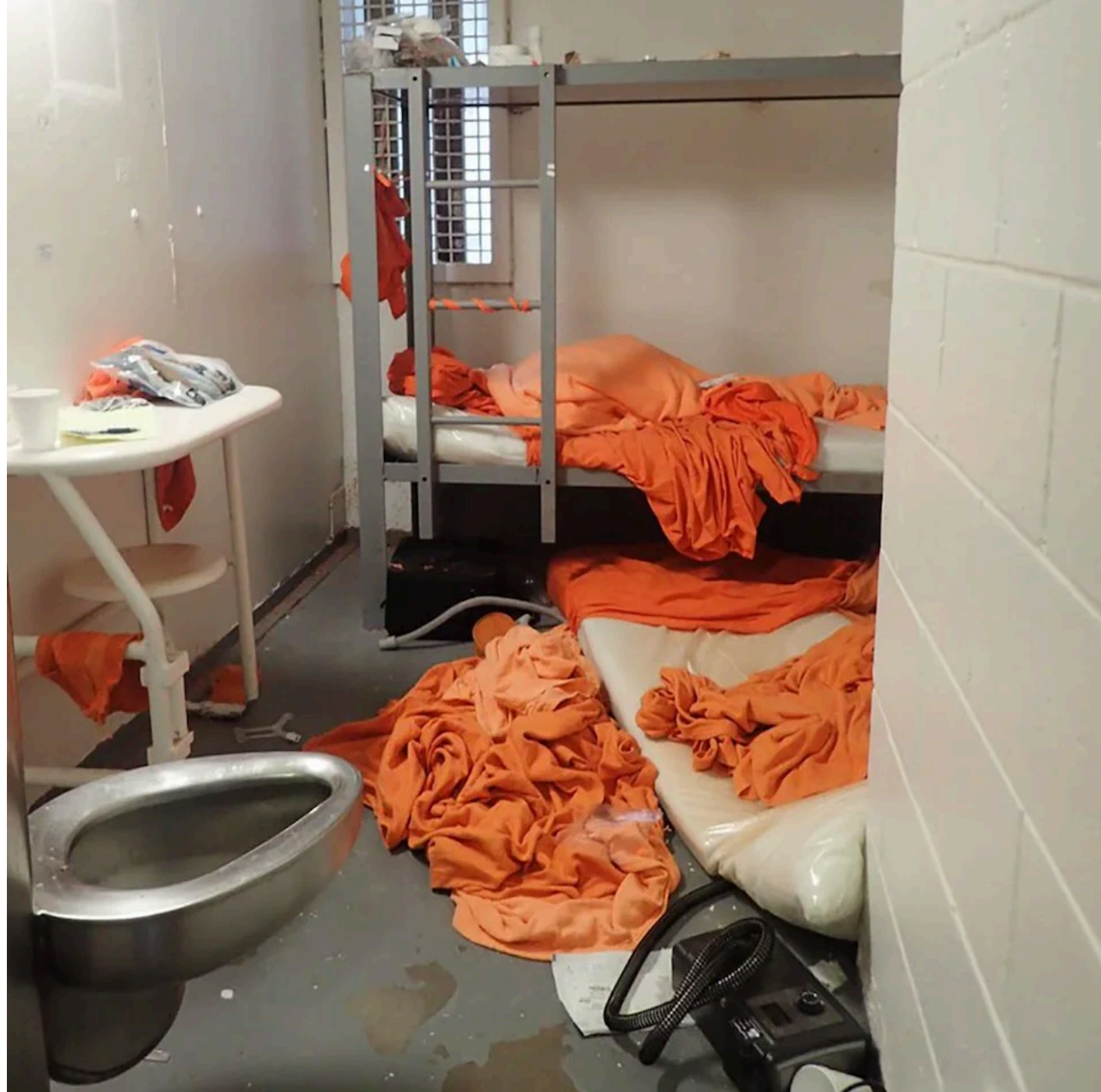
His findings conflicted with the official report, suggesting Floyd did not have any underlying health problems that contributed to his death by suffocation after a police officer knelt on his neck.

Similarly, in Epstein's case, the doctor's findings have been dismissed by officials, but still resonate with many who question how such a high-profile inmate on suicide watch managed to kill himself in his cell.

And although the circumstances of his death have been examined, the actual cause has never been revisited.



The door to Epstein's cell where he was found dead Credit: Department of justice



The paedophile's prison cell photographed after his body was found Credit: Department of justice

Discrepancies found in the three million documents related to the sex offender released on Jan 30 have further fuelled questions surrounding Epstein's cause of death.

A statement from the Manhattan Attorney's Office regarding Epstein's death was dated Aug 9 2019 — one day before he was found dead in his cell. The DoJ said the date was an “unfortunate typo”.

The guards on duty also failed to check on Epstein for hours, despite being required to do so every 30 minutes, while two cameras near his cell either were not working or failed to record.

According to the official report, a noose made of an orange bedsheet collected at the scene was later determined not to be one used in Epstein’s death.



Orange fabric collected at the scene. The noose Epstein used has never been definitely identified

Dr Baden said he had noticed this during the post mortem and was concerned at the time that “the noose didn’t match the [injury]”.

“It wasn’t smooth like the sheet, the markings [on Epstein’s neck] would have required a different type of material,” he said.

Dr Baden also cited the unorthodox handling of the crime scene, saying that critical evidence was lost because of mistakes made with the handling of Epstein’s body.

XXXXXX did not work Friday August 9, 2019. XXXXX relieved Lt. XXXXXXXX, another GS-11 Lieutenant at MCC, at 5:30am on Saturday August 10, 2019. XXXX was in his office on the 3rd floor from 5:30am until approximately 6:33am when he heard a call for a medical emergency on the 9th floor. XXXXXXX immediately went to the 9th floor. EPSTEIN's cell was the first cell to the right of the elevator. Whe XXXXXXX arrived at EPSTEIN's cell, he saw two COs, Officer XXXXX and Officer XXXX. EPSTEIN was lying down on two mattresses on the floor of the cell. Officer XXX was next to EPSTEIN's body attempting to administer CPR. Officer XXX was standing by the entrance to the cell and told XXXXX "EPSTEIN hung himself" XXX pushed Officer XXXXX off of EPSTEIN and continued CPR. XXXX asked for someone to get an AED and call for the Duty Nurse. The Duty Nurse arrived and took over administering CPR to EPSTEIN. The Duty Nurse arrived and took over administering CPR to EPSTEIN XXX aw a noose fabricated out of bed sheets but could not recall if the noose was around EPSTEIN's neck or on the ground next to the body. XXXX took photos of EPSTEIN's cell on a BOP camera.

A page from Jeffrey Epstein's autopsy illustrating confusion at the scene. Credit: Department of justice



“[They] moved the body, guards refused to say how the body was found, and he was moved to the infirmary,” he said, which he claims is a “highly unusual” move.



Most importantly, Dr Baden says, Epstein’s time of death was “lost”.
Such evidence, he said, might have definitively helped rule out if his death was murder.
The Telegraph has contacted the New York City medical examiner’s office for comment.

Do you need mental health help? Numbers to call

Samaritans, available 24 hours a day, 365 days a year: [samaritans.org](https://www.samaritans.org).

If you need a response immediately, it’s best to call on the phone (this number is FREE to call):

☎ 116 123

MIND, the mental health charity: [mind.org.uk](https://www.mind.org.uk)

☎ 0300 123 3393

Rethink Mental Illness: [rethink.org](https://www.rethink.org)

☎ 0300 5000 927

National Domestic Abuse Helpline: [nationaldahelpline.org.uk](https://www.nationaldahelpline.org.uk) ☎ 0808 2000 247

Join the conversation

Show 783 comments

The Telegraph values your comments but kindly requests all posts are on topic, constructive and respectful. Please review our commenting policy.



Related Topics Jeffrey Epstein, The Epstein files

License this content

More Stories



‘I loved the torture video’: Epstein’s chilling email to Emirati billionaire



The Hollywood mogul who entangled music’s biggest stars in the Epstein scandal



Prince of Wales ‘wanted Andrew out before rot set in’



The German countess who advised the NHS and called Epstein ‘Mr Wonderful’



Andrew ‘said Epstein victim invited to Buckingham Palace was called Mrs Windsor’



Andrew had Queen’s ‘full support’ after Epstein links emerged, royal aide claims

More from News



Gregg Wallace sells Valentine’s messages after sexual misconduct scandal



Miliband’s devastating net zero fanaticism is driving Britain over the edge



Gordon Ramsay tells Brooklyn Beckham: ‘Remember where you came from’



Trump: Iran regime change is ‘best thing that could happen’



Russia killed Navalny with frog poison, Britain reveals

Rubio: UN plays no role in ending wars



More from The Telegraph



Driver killed boy while trying to run over e-bike riders



Was this picture of grinning Andrew the last straw for the Palace?



For the monarchy, the Andrew saga is very far from over



Ghislaine Maxwell will exonerate Trump and Clinton for clemency



Michael Jackson’s obsession with children has been laid bare anew. And it’s more shocking than ever

Follow us on:

Download the Telegraph App

Podcasts

Help Centre

Branded Content

Reader Prints

Careers

Announcements

Terms & Conditions

Crosswords

Advertising terms

Cryptic Crossword

Subscription Terms & Conditions

Plusword

Do Not Sell or Share My Personal Information

© Telegraph Media Group Holdings Limited 2026

Recommended

Syndication and Commissioning

Betting

NEW Privacy Policy

Theatre Tickets

About us

Guidelines

Newsletters

Tax Strategy

Subscribe

Modern Slavery

Gift Subscriptions

The Chelsea Magazine Company

About Ads